

Subcontractor Agreement

This Subcontractor Agreement ("Agreement") is made effective as of January 29, 2026, by and between Seating Constructors USA Inc ("General Contractor"), of 19815 State Road 52, Land O Lakes, Florida 34637 and Smart Choice Contractors LLC ("Subcontractor"), of 16663 US-41, Spring Hill, FL 34610, Spring Hill, Florida 34610.

Recitals

The General Contractor has entered into a contract dated January 28, 2026 ("Original Contract") with Awilda Velazquez ("Owner") of 14689 SW 24th Pl, Ocala, Florida 34481. Under the Original Contract, the General Contractor has agreed to Installation of windows and doors. The General Contractor wishes to subcontract with the Subcontractor for a portion of the services contemplated by the Original Contract. The Subcontractor is willing to provide such services.

Agreement

Therefore, in consideration of the mutual promises contained in this Agreement, the parties agree as follows:

1. Description of Services. Beginning on January 29, 2026, the Subcontractor will provide the following services and/or materials (collectively, "Services"): Installation of windows and doors as 7 windows 36X62, 2 windows 36x25, one 72x80 slider glass door, 2 doors 36x80 front and garage door. These services will be performed at the following address: 14689 WS 24TH PLA, OCALA, Florida 34481.

The Subcontractor will complete the Services strictly in accordance with any applicable plans and specifications as contained in the Original Contract, and in a workmanlike manner, meeting all local and state building codes, including the Uniform Building Code or other applicable local regulations.

2. Payment for Services. In exchange for the Services, the General Contractor will pay the Subcontractor in the amount of \$2,000.00. Payment will be made when the Services are completed.

3. Completion. All Services shall be completed by the Subcontractor on or before February 01, 2026.

4. Permits. The General Contractor shall be solely responsible for obtaining and paying for all necessary permits, licenses, and any other instruments required to perform the Services. The Subcontractor will fully cooperate with the General Contractor in obtaining any permits and licenses, as necessary.

5. Indemnity and Insurance.

(a) The Subcontractor agrees to indemnify and hold harmless the General Contractor, the Owner, design professionals, and their respective agents and assigns from all claims, losses, damages, expenses, fees including attorney fees, costs, settlements, and judgments arising out of the performance of the Subcontractor or resulting in whole or in part from the actual or alleged acts, omissions, or breaches of this Agreement by the Subcontractor, or the violation of any relevant laws by the Subcontractor or its employees, agents, or others under its control while performing the Services under this Agreement.

(b) The Subcontractor shall maintain insurance policies, of each and every type, with provisions and coverage amounts substantially identical to, the corresponding requirements of the General Contractor as described by the terms of the Original Contract. The Subcontractor shall provide the General Contractor with written proof of compliance with this paragraph prior to the commencement of the Services.

6. Change Orders. If the Owner requests or requires any change, either expanding or limiting the work to be performed under the Original Contract, the Subcontractor shall accept such change orders. The General Contractor agrees to provide the Subcontractor with written notice of any such change orders as soon as practical after the General Contractor receives such notice. Any resulting increase or decrease in the subcontract price provided for in the "Payment of Services" section must be in writing, mutually agreed to, and signed by both parties. If the parties are unable to reach an agreement regarding any price adjustment for a change order, the Subcontractor will proceed with the change order work, and the matter shall be submitted to arbitration under the laws of Florida within 30 days from the issuance of the change order. Such arbitration shall set the change order price allowing the General Contractor a reasonable profit, after considering direct costs and reasonable overhead expenses.

7. Unforeseen Conditions and Acts of God.

(a) Reasonable additional, unexpected costs directly related to an existing, concealed condition or other situation that may be revealed during construction, shall be the sole responsibility of the General

Contractor. Further, the Subcontractor shall not be held responsible for reasonable delays caused by such conditions.

- (b) This Agreement is subject to force majeure, including without limitation, accidents, acts of God, plague, epidemic, pandemic, outbreaks of infectious disease or any other public health crisis, including quarantine or other employee restrictions, fire, explosion, vandalism, storm, weather conditions, labor strikes, orders or acts of military or civil authority, national emergencies, insurrections, riots, wars, or other delays beyond the reasonable control of the parties. The Subcontractor shall not be held responsible for reasonable delays caused by such events but shall use reasonable efforts under the circumstances to avoid or remove such causes of non-performance.
- (c) Nothing in this Agreement shall preclude the Subcontractor's claims for recovery of delay damages caused by the General Contractor, the Owner, design professionals, or parties other than the Subcontractor, its employees, agents, or others under the Subcontractor's control on this project.

8. Default. The occurrence of any of the following shall constitute a material default under this Agreement:

- (a) The failure of the General Contractor to make a required payment when due.
- (b) The insolvency or bankruptcy of either party.
- (c) The subjection of any of either party's property to any levy, seizure, general assignment for the benefit of creditors, application, or sale for or by any creditor or government agency.
- (d) The failure of the Subcontractor to deliver the Services in the time and manner provided for in this Agreement.

9. Remedies on Default. In addition to any and all other rights available according to law, if either party defaults by failing to substantially perform any material provision, term, or condition of this Agreement (including without limitation the failure to make a monetary payment when due), the other party may elect to terminate this Agreement if the default is not cured within 10 day(s) after providing written notice to the defaulting party. The notice shall describe with sufficient detail the nature of the default.

10. Relationship of the Parties. The provisions of this Agreement are not intended to create, nor shall be deemed or construed to create, any joint venture, partnership, or other relationship between the General Contractor and the Subcontractor other than that of independent entities contracting with each other solely for the purpose of carrying out the provisions of this Agreement. Neither of the parties to this Agreement, nor any

of their respective employees, agents, or other representatives, shall be construed to be the agent, employee, or representative of the other party. Neither party shall have the authority to bind the other party, nor shall a party be responsible for the acts or omissions of the other party, unless otherwise stated in this Agreement. Similarly, the Subcontractor expressly acknowledges that it is not an agent, employee, or representative of the Owner and covenants to represent itself accordingly.

11. Access, Signage Rights, and Design Plans.

- (a) During the term of this Agreement, the Subcontractor shall have at all times reasonable access to the construction site, and both the Subcontractor and the General Contractor will take all reasonable steps necessary to coordinate the progress of construction with other subcontractors so that the project can be completed in a timely manner.
- (b) During the term of this Agreement, the Subcontractor may erect one temporary sign showing its name, service mark, trade name, or other commercial name, identifying the Subcontractor as performing the Services on the construction project. The sign must be appropriate in appearance, style, and size, and must conform to all applicable federal, state, and local laws.
- (c) The General Contractor will make available to the Subcontractor all plans, specifications, drawings, blueprints, and similar construction documents necessary for the Subcontractor to provide the Services. Any such materials shall remain the property of the General Contractor. The Subcontractor will promptly return all such materials to the General Contractor upon completion of the Services.

12. Notices. Any notice or communication required or permitted under this Agreement shall be sufficiently given if delivered in person or by certified mail, return receipt requested, to the addresses listed above or to such other address as one party may have furnished to the other in writing. The notice shall be deemed received when delivered or signed for or on the third day after mailing if not signed for.

13. Entire Agreement. This Agreement contains the entire agreement of the parties regarding the subject matter of this Agreement, and there are no other promises or conditions in any other agreement, whether oral or written. This Agreement supersedes any prior written or oral agreements between the parties.

14. Waiver. No waiver by either party of any breach of this Agreement shall be deemed to waive any other breach. No acceptance of payment or performance after any breach shall be deemed a waiver of any breach. No failure or delay to exercise any right by a party upon another's default shall prevent that party from later exercising that right, nor shall such failure or delay operate as a waiver of any default.

15. **Severability.** If any provision of this Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited.

16. **Amendment.** This Agreement may be modified or amended only if made in writing and signed by both parties.

17. **Applicable Law.** This Agreement shall be governed by the laws of Florida.

18. **Assignment.** Neither party may assign or transfer this Agreement without the prior written consent of the other party, which consent shall not be unreasonably withheld.

19. **Dispute Resolution.** The parties will attempt to resolve any dispute arising out of or relating to this Agreement through friendly negotiations among the parties. If the matter is not resolved by negotiation, the parties will resolve the dispute using the below Alternative Dispute Resolution (ADR) procedure.

Any controversies or disputes arising out of or relating to this Agreement, other than those described in the Section entitled "Change Orders," will be submitted to mediation in accordance with any statutory rules of mediation in the State of Florida. If mediation does not successfully resolve the dispute, the parties may proceed to seek an alternative form of resolution in accordance with any other rights and remedies afforded to them by law.

20. **Binding Effect.** This Agreement shall be binding upon, and inure to the benefit of, the parties and their respective heirs, representatives, successors, and assigns.

21. **Signatories.** This Agreement shall be signed by Phil Vanderhider, General Contractor on behalf of Seating Constructors USA Inc and by Harold Cabrera, project manager on behalf of Smart Choice Contractors LLC and shall be effective as of the date first written above.

The Subcontractor:

Smart Choice Contractors LLC

By: _____

Date: _____

Harold Cabrera

project manager

The General Contractor:

Seating Constructors USA Inc

By: _____

Date: _____

Phil Vanderhider

General Contractor